

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 10  
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk  
191 North First Street, San Jose, CA 95113  
Telephone: 408-882-2210

**DATE: June 12, 2025      TIME: 9:00 A.M.**

**To contest the ruling, call (408) 808-6856 before 4:00 P.M.**

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,  
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

| LINE #                 | CASE #     | CASE TITLE                                              | RULING                                                                                                                                                                                                                                              |
|------------------------|------------|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a> | 24CV446658 | Miguel Velazquez et al. v. Aurora Munoz et al.          | Click on <a href="#">LINE 1</a> or scroll down for ruling in lines 1-2.                                                                                                                                                                             |
| <a href="#">LINE 2</a> | 25CV457441 | J. Ascencion Calderon et al. v. Miguel Velazquez et al. | Click on <a href="#">LINE 1</a> or scroll down for ruling in lines 1-2.                                                                                                                                                                             |
| <a href="#">LINE 3</a> | 21CV391604 | Dorothy Ramirez et al. v. Suzanne Ramirez et al.        | Click on <a href="#">LINE 3</a> or scroll down for ruling.                                                                                                                                                                                          |
| <a href="#">LINE 4</a> | 24CV444616 | JPMorgan Chase Bank, N.A. v. David P. Poly              | Motion for RFAs to be deemed admitted: notice is proper, and the motion is unopposed. Because defendant has apparently not served any responses to the RFAs, the court finds good cause to GRANT the motion. Moving party to submit proposed order. |
| <a href="#">LINE 5</a> | 24CV449517 | Wells Fargo Bank, N.A. v. Aghiles Drif                  | Motion for RFAs to be deemed admitted: the court recently signed a stipulated judgment and dismissed this case. The motion is MOOT, and the June 30, 2025 trial date is VACATED.                                                                    |

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## Calendar Lines 1-2

**Case Names:** *Miguel Velazquez et al. v. Aurora Munoz et al.* and *J. Ascencion Calderon et al. v. Miguel Velazquez et al.*

**Case Nos.:** 24CV446658 and 25CV457441

On May 13, 2025, the Civil Division Supervising Judge, Judge Pennypacker, issued an order to show cause to the parties regarding consolidation of these two cases, setting a hearing for June 12, 2025. The undersigned has now reviewed the submissions of the parties—the opening brief of J. Ascencion Calderon and Mabiela Calderon (the “Calderons”), filed May 20, 2025; the opening brief of Aurora Munoz and Jose Munoz (the “Munozes”), filed May 20, 2025; and the responsive brief of Miguel Velazquez and Maria Velazquez (the “Velazquezes”), filed May 30, 2025—and concludes that the cases should be consolidated.

Ordinarily, the court is loath to consolidate an unlawful detainer case with a regular unlimited civil case. As the Calderons and Munozes both emphasize (rather repetitively in their briefs), unlawful detainer cases are unique, summary proceedings for the possession of leased premises. (See Code Civ. Proc., §§ 1161, 1161.1.) With few exceptions, they are given statutory “precedence over all other civil actions,” and they are governed by exceptionally short deadlines for the setting of trial. (Code Civ. Proc., § 1179a; see also Code Civ. Proc., § 1170.5 [trial must be set no later than the 20th day after the request to set the trial is made].) As a result, consolidating an unlawful detainer case with a regular civil case will almost always cause a tremendous delay in resolving the issue of possession, given that regular civil cases often take a minimum of one or two years to go to trial. As the unlawful detainer plaintiffs, the Calderons argue that they will be prejudiced by such a delay.

On the other hand, when complicated ownership issues arise involving allegations of fraud, those issues will usually need to be resolved before the issue of possession can be addressed, and an unlawful detainer case is not a suitable forum for litigating such ownership issues. (See *Asuncion v. Superior Court of San Diego County* (1980) 108 Cal.App.3d 141, 145-146 (*Asuncion*); *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 393-395 (*Martin-Bragg*).) In *Asuncion*, which was decided when unlawful detainer cases were still heard in municipal courts rather than superior courts, the Court of Appeal noted: “[T]itle to the property is inevitably in issue in this unlawful detainer action, and the action is not within the jurisdiction of the municipal court.” The Court therefore ordered the case transferred to the superior court, where the superior court would either “stay the eviction proceedings until trial of the fraud action” or order “consolidation of the actions.” (*Asuncion*, 108 Cal.App.3d at pp. 146-147.) Similarly, in *Martin-Bragg*, the Court of Appeal, relying in part on *Asuncion*, confirmed that “adjudication of complex issues of title to property should not be forced to adhere to the strictures that apply to summary proceedings for unlawful detainer.” (*Martin-Bragg*, 219 Cal.App.4th at p. 393.) Thus, in that case, it was an abuse of discretion for the trial court to resolve the disputed ownership question within the summary unlawful detainer proceeding. (*Id.* at pp. 393-395 [reiterating the possibility of consolidation or a stay, in the trial court’s discretion].)

Here, we have an unlimited civil case filed by the Velazquezes against the Munozes and the Calderons on September 4, 2024 (Case No. 24CV446658), and an unlawful detainer case filed more than four and a half months later (January 28, 2025) by the Calderons against